

STATE OF NEW YORK

9360--A

IN SENATE

March 5, 2026

Introduced by Sens. ZELLNER, SCARCELLA-SPANTON, SKOUFIS -- read twice and ordered printed, and when printed to be committed to the Committee on Transportation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the vehicle and traffic law, in relation to requiring all persons less than sixteen years of age to provide proof of age for the purchase of bicycles with electric assist, electric scooters, and class A and class B limited use motorcycles; and establishing penalties therefor

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Section 1242 of the vehicle and traffic law is amended by adding a new subdivision 11-a to read as follows:

11-a. No person, firm, association or corporation engaged in the business of selling or leasing bicycles with electric assist shall sell or lease any bicycle with electric assist to any person less than sixteen years of age. Valid proof of age shall be required at the point of purchase.

§ 2. The vehicle and traffic law is amended by adding a new section 1290 to read as follows:

§ 1290. Additional provisions applicable to electric scooters. No person, firm, association or corporation engaged in the business of selling or leasing electric scooters shall sell or lease an electric scooter to any person less than sixteen years of age. Valid proof of age shall be required at the point of purchase.

§ 3. Section 2261 of the vehicle and traffic law is amended by adding a new subdivision 7 to read as follows:

7. Sale of class A and class B limited use motorcycles to minors prohibited. No person, firm, association or corporation engaged in the business of selling limited use motorcycles shall sell a class A limited use motorcycle or class B limited use motorcycle, as defined by section one hundred twenty-one-b of this chapter, to any person less than sixteen years of age. Valid proof of age shall be required at the point of purchase.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 § 4. Section 1800 of the vehicle and traffic law is amended by adding
2 a new subdivision (j) to read as follows:

3 (j) Any person, firm, association, or corporation convicted of violat-
4 ing subdivision eleven-a of section twelve hundred forty-two of this
5 chapter or section twelve hundred ninety of this chapter, shall, for a
6 first offense thereof, be punished by a fine of not less than two
7 hundred dollars nor more than five hundred dollars. For a conviction of
8 a second violation, both of which were committed within eighteen months,
9 such person, firm, association or corporation shall be punished by a
10 fine of not less than five hundred dollars nor more than one thousand
11 dollars. For a conviction of a third violation and all subsequent
12 violations, all of which were committed within a period of eighteen
13 months, such person, firm, association or corporation shall be punished
14 by a fine of not less than one thousand dollars nor more than one thou-
15 sand five hundred.

16 § 5. This act shall take effect on the ninetieth day after it shall
17 have become a law. Effective immediately, the addition, amendment and/or
18 repeal of any rule or regulation necessary for the implementation of
19 this act on its effective date are authorized to be made and completed
20 on or before such date.